Alabama Rules of Criminal Procedure

Rule 16. Discovery.

Rule 16.5. Relief for noncompliance.

If at any time during the course of the proceedings it is brought to the attention of the court that a party has failed to comply with this rule or with an order issued pursuant to this rule, the court may order such party to permit the discovery or inspection; may grant a continuance if requested by the aggrieved party; may prohibit the party from introducing evidence not disclosed; or may enter such other order as the court deems just under the circumstances. The court may specify the time, place, and manner of making the discovery and inspection and may prescribe such terms and conditions as are just.

Committee Comments

This rule is similar to Rule 16(d)(2), Fed.R.Crim.P., and gives the court wide discretion in fashioning relief and sanctions for noncompliance.